

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



July 16, 2018

Honorable Steven D. Bromberg
Judge of the Superior Court
County of Orange
700 Civic Center Drive West
Santa Ana, CA 92701

Re: Hernandez, Michelle Elizabeth
CDC No.: WE9501
Case No.: 11NF2174
Date of Sentence: May 16, 2014

Dear Honorable Steven D. Bromberg:

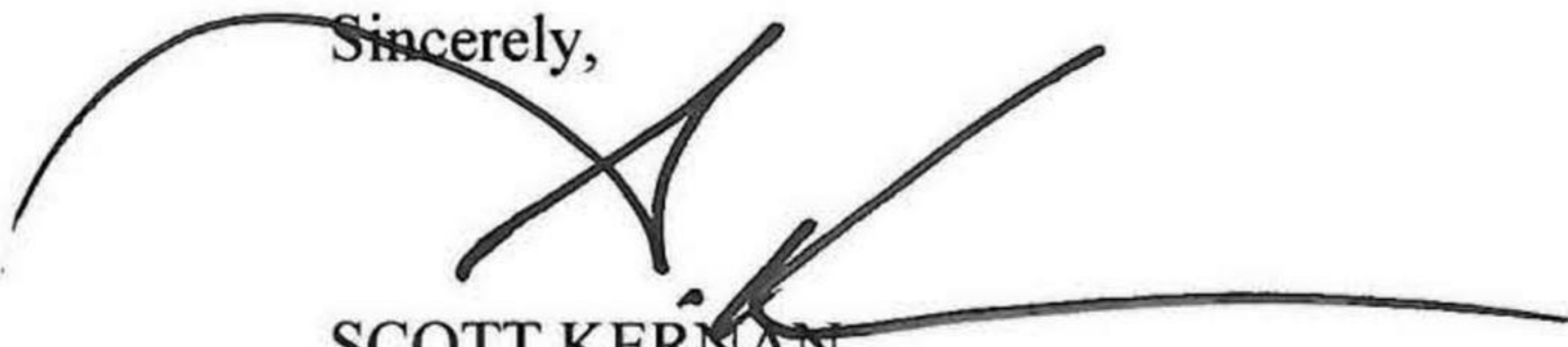
The purpose of this letter is to provide the court with authority to resentence Michelle Elizabeth Hernandez pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Hernandez was sentenced in 2014, and was convicted of section 245, subdivision (a)(1), Assault with deadly weapon other than firearm. The trial court sentenced inmate Hernandez on May 16, 2014. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Hernandez's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Hernandez's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,


SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Felony Information

cc: Honorable Charles Margines, County Presiding Judge
District Attorney
Public Defender

WE 9501

FELONY ABSTRACT OF JUDGMENT - DETERMINATE
(NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED)

DNA TAKEN

FILED

SUPERIOR COURT OF CALIFORNIA
COUNTY OF ORANGE
CENTRAL JUSTICE CENTER

MAY 27 2014

ALAN W. LLOYD, Clerk of the Court

ELI FLORES

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: Orange		PEOPLE OF THE STATE OF CALIFORNIA vs		DOB: 07-22-1993	11NF2902 B		SUPERIOR COURT OF CALIFORNIA COUNTY OF ORANGE CENTRAL JUSTICE CENTER
DEFENDANT: Hernandez, Michelle Elizabeth 8617107					11CF2055 A		B
AKA: Hernandez, Michelle Elizabeth ; Hernandez, Michelle Elizabeth ; Hernandez					11NF2174 HC		C
CII NO.: A31363313							
BOOKING NO.: 2652789		5-27-14		☐ NOT PRESENT			
FELONY ABSTRACT OF JUDGMENT		☒ PRISON COMMITMENT ☐ COUNTY JAIL COMMITMENT		☐ AMENDED ABSTRACT			
DATE OF HEARING 05/16/2014		DEPT. NO. C28		JUDGE Steven D. Bromberg			
CLERK Bianca Pavlu		REPORTER Patti Lindsey		PROBATION NO. OR PROBATION OFFICER ☐ IMMEDIATE SENTENCING			
COUNSEL FOR PEOPLE Israel Claustro		COUNSEL FOR DEFENDANT Christopher Strobel, Judge Pro Tempore		☐ APPOINTED			

1. Defendant was convicted of the commission of the following felonies:

☒ Additional counts are listed on attachment
1 (number of pages attached)

COUNT	CODE	SECTION NO.	CRIME	YEAR CRIME CMMD	DATE OF CONVICTION (MO/DATE/YEAR)	CONVICTED BY			TERM (L,M,U)	CONCURRENT	1/3 CONSECUTIVE	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (refer to item 5)	554 STAY	SERIOUS FELONY	VIOLENT FELONY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COURT	PLEA									YRS	MOS.
1A	PC	215(a)	Carjacking	11	01/17/2014			X	M		X				X	X	01	08
2A	PC	207(a)	Kidnapping	11	01/17/2014			X	U						X	X	08	00
1B	PC	211/212.5(c)**	Robbery; second degree	11	10/23/2012	X			M	X					X	X	(03	00)
2B	PC	182(a)(1)	Conspire to commit a crime	11	10/23/2012	X			M	X					X	X	(00	00)
3B	VC	2800.2	Evading a peace officer/reckless dri	11	10/23/2012	X			M	X					X	X	(00	00)
4B	PC	186.22(a)	Participate in criminal street gang a	11	10/23/2012	X									X	X	00	00

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

COUNT	ENHANCEMENT	TIME IMPOSED. "S," or "PS"	ENHANCEMENT	TIME IMPOSED. "S," or "PS"	ENHANCEMENT	TIME IMPOSED. "S," or "PS"	ENHANCEMENT	TIME IMPOSED. "S," or "PS"	TOTAL
2A	186.22(b)(1)(C) PC	10Y00M							10 0
1B	186.22(b)(1) PC	(10Y00M)							0 0
2B	186.22(b)(1) PC	(10Y00M)							0 0
3B	186.22(b)(1) PC	(S)							
1C	186.22(b)(1)(C) PC	(10Y00M)	12022.7(a) PC	(03Y00M)					0 0

3. ENHANCEMENTS charged and found to be true for PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

ENHANCEMENT	TIME IMPOSED. "S," or "PS"	ENHANCEMENT	TIME IMPOSED. "S," or "PS"	ENHANCEMENT	TIME IMPOSED. "S," or "PS"	ENHANCEMENT	TIME IMPOSED. "S," or "PS"	TOTAL

4. Defendant sentenced ☐ to county jail per PC 1170(h)(1) or (2)

☒ to prison per 1170(a), 1170.1(a) or 1170(h)(3) due to ☒ current or prior serious or violent felony ☐ PC 290 or ☐ PC 186.11 enhancement

☐ per PC 667(b)-(i) or PC 1170.12 (strike prior)

☐ per PC 1170(a)(3). Preconfinement credits equal or exceed time imposed. ☐ Defendant ordered to report to local parole or probation office.

5. INCOMPLETE SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6. TOTAL TIME ON ATTACHED PAGES: **00 00**

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME: **19 08**

Attachments may be used but must be referred to in this document.

PEOPLE OF THE STATE OF CALIFORNIA vs.

DEFENDANT: Hernandez, Michelle Elizabeth 8617107

11NF2902

-A

11CF2055

-B

11NF2174

-C

-D

9 FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

a. Restitution Fine(s):

Case A: \$ 200.00 per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$ 200.00 per PC 1202.45 suspended unless parole is revoked.
\$ 0.00 per PC 1202.44 is now due, probation having been revoked.

Case B: \$ 200.00 per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$ 200.00 per PC 1202.45 suspended unless parole is revoked.
\$ 0.00 per PC 1202.44 is now due, probation having been revoked.

Case C: \$ 200.00 per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$ 200.00 per PC 1202.45 suspended unless parole is revoked.
\$ 0.00 per PC 1202.44 is now due, probation having been revoked.

Case D: \$ per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$ per PC 1202.45 suspended unless parole is revoked.
\$ 0.00 per PC 1202.44 is now due, probation having been revoked.

b. Restitution per PC 1202.4(f):

Case A: \$ ☐ Amount to be determined to ☐ Victim(s)* ☐ Restitution Fund

Case B: \$ ☐ Amount to be determined to ☐ Victim(s)* ☐ Restitution Fund

Case C: \$ ☐ Amount to be determined to ☐ Victim(s)* ☐ Restitution Fund

Case D: \$ ☐ Amount to be determined to ☐ Victim(s)* ☐ Restitution Fund

☐ * Victim name(s), if known, and amount breakdown in item 13, below.

☐ * Victim name(s), in probation officer's report.

c. Fine(s):

Case A: \$ per PC 1202.5 \$ 0.00 per VC 23550 or 0 days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive

☐ includes: ☐ \$ Lab Fee per HS 11372.5(a) ☐ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case B: \$ per PC 1202.5 \$ 0.00 per VC 23550 or 0 days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive

☐ includes: ☐ \$ Lab Fee per HS 11372.5(a) ☐ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case C: \$ per PC 1202.5 \$ 0.00 per VC 23550 or 0 days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive

☐ includes: ☐ \$ Lab Fee per HS 11372.5(a) ☐ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case D: \$ per PC 1202.5 \$ 0.00 per VC 23550 or 0 days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive

☐ includes: ☐ \$ Lab Fee per HS 11372.5(a) ☐ Drug Program Fee per HS 11372.7(a) for each qualifying offense

d. Court Operations Assessment: \$40.00 per PC 1465.8. e. Conviction Assessment: \$30.00 per GC 70373. f. Other: \$ per (specify):

10. TESTING: ☐ Compliance with PC 296 verified ☐ AIDS per PC 1202.1 ☒ other (specify) DNA PC 296

11. REGISTRATION REQUIREMENT: ☒ per (specify code section): Penal Code 186.30

12. ☐ MANDATORY SUPERVISION: Execution of a portion of the defendant's sentence is suspended and deemed a period of mandatory supervision under Penal Code section 1170(h)(5)(B) as follows (specify total sentence, portion suspended, and amount to be served forthwith):

Total: Suspended: Served forthwith:

13. Other orders (specify): 11NF2902- Count(s) 3 DISMISSED- Motion of People. Count(s) 2, 3, 4 DISMISSED- Motion of People.

All Cases- Court orders all fees payable through the Department of Corrections.

Defendant ordered to report to Parole within 24 hours of release from custody.

14. IMMEDIATE SENTENCING: ☐ Probation to prepare and submit a post-sentence report to CDCR per PC 1203c

Defendant's race/national origin: White

15. EXECUTION OF SENTENCE IMPOSED

a. ☒ at initial sentencing hearing.

b. ☐ at resentencing per decision on appeal.

c. ☐ after revocation of probation

d. ☐ at resentencing per recall of commitment. (PC 1170(d).)

e. ☐ other (specify):

16. CREDIT FOR TIME SERVED

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
A	1391	1210	181 ☐ 2933 ☒ 2933.1 ☐ 4019
B	1391	1210	181 ☐ 2933 ☒ 2933.1 ☐ 4019
C	1391	1210	181 ☐ 2933 ☒ 2933.1 ☐ 4019
D			☐ 2933 ☐ 2933.1 ☐ 4019
Date Sentence Pronounced		Time Served in State Institution	
05/16/2014		☐ DMH ☐ CDC ☐ CRC	

17. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.

To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation.

☐ county jail ☐ other (specify):

I hereby certify the foregoing to be a correct abstract of judgment made in this action.

DEPUTY'S SIGNATURE

E. Flores

DATE

MAY 27, 2014

CR-290(A)

DEFENDANT: Hernandez, Michelle Elizabeth 8617107

-A

-B

-C

-D

- This attachment page number: 1

TOTAL	00	00
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- horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

TOTAL	00	00
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- horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

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